

AGENCY NAME

AGENT AGREEMENT

INDEPENDENT CONTRACTOR AGREEMENT

This Independent Contractor Agreement (the "Agreement"), dated as of the Effective Date (as defined below), is entered into by and among AGENCY NAME, a Florida limited liability company operating as a General Agency ("GA"), and _____, an Individual (the "Agent").

RECITALS

A. **WHEREAS**, GA is a limited liability company organized under the laws of Florida that is engaged in the business of providing life insurance solutions;

B. **WHEREAS**, Agent is a duly licensed insurance agent whose National Producer Number (NPN) is _____; and

C. **WHEREAS**, Agent desires to contract with GA to serve as an independent insurance agent of GA, and GA desires to contract with Agent, whereby Agent will serve as an independent agent of GA, pursuant to the terms and conditions of this Agreement.

D. **NOW, THEREFORE**, for and in consideration of the mutual covenants and agreements contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereby agree as follows:

AGREEMENT

1. **Engagement.** GA hereby engages Agent and Agent hereby accepts the engagement of GA to serve as an independent insurance agent of GA in connection with the insurance products sold by Agent (the "Engagement") pursuant to the terms of this Agreement.

2. **Term.** The term of this Agreement shall commence on the Effective Date and shall thereafter continue for a period of one (1) year, unless terminated earlier pursuant to the remaining provisions of This Agreement (the "Term"). This Agreement shall automatically renew for successive one (1) year terms following the conclusion of the original Term unless either party provides written notice of its intent to terminate this Agreement within fifteen (15) days of the conclusion of the current Term.

3. **Independent Contractor.** Agent shall be retained as an independent contractor and shall not be considered under the provisions of this Agreement or otherwise as having employee status. Agent acknowledges and agrees that they are not an employee of GA for any purpose, including but not limited to payroll and employment tax withholding and reporting. As such, Agent agrees to pay any and all federal, state, and local taxes of Agent, including self-employment taxes levied on account of the services performed by Agent pursuant to the terms and provisions of this Agreement. Agent also understands that they are not entitled to employment compensation, unemployment compensation and/or workers compensation and hereby waive any claim to such with the understanding that Agent is not an employee of GA.

4. **Expenses.** All expenses incurred by Agent in performing under this Agreement shall be exclusively borne by Agent, except as specifically provided in this Agreement. Agent shall have no claim or shall not be entitled to reimbursement for any expenses, unless incurring such expenses was expressly authorized in writing by GA.

5. **Control of Business.** During the term of this Agreement, Agent shall retain sole and exclusive control over the manner, method, and means by which Agent performs services for General Agency ("GA"), consistent with Agent's independent contractor status. While GA may define the scope of general services to be performed under this Agreement, GA shall not interfere with or direct the specific manner, time, or place of Agent's activities, except as expressly permitted herein. Agent shall retain absolute discretion in selecting the individuals and entities to solicit, the methods and approaches used in solicitation, and the timing and locations of such activities. However, recognizing that the insurance industry operates within a complex regulatory framework, GA reserves the right to establish and enforce reasonable standards of

conduct, operational procedures, and compliance protocols necessary to ensure adherence to applicable federal, state, and local laws, regulations, and industry best practices. Such standards are intended to safeguard both GA's and Agent's business interests by ensuring lawful and ethical conduct in the solicitation, negotiation, and sale of insurance products. Notwithstanding the foregoing, these standards of conduct shall not abridge Agent's independent judgment in carrying out their responsibilities but shall ensure that Agent operates within the framework of legal and regulatory requirements and in a manner that reflects GA's commitment to compliant and professional business practices. Agent acknowledges that compliance with these standards is a material condition of this Agreement, particularly with respect to maintaining familiarity with the insurance products being sold and the applicable legal environment in which such sales occur.

6. Appointment. Once Agent and GA fully execute this Agreement, Agent shall be eligible to be appointed in your individual personal capacity to procure applications for insurance contracts on behalf of the individual insurance companies GA is contracted with. Notifications of appointment will be given to you via email. Agent agrees not to solicit applications for insurance contracts on behalf of an insurance company until you receive notifications that you have been appointed as a representative of that insurance company and until you are licensed to sell the applicable insurance products by the State in which you are selling insurance, and have all other certifications and/or authorizations required to sell the applicable insurance products.

7. Representations and Warranties. Agent represents and warrants to GA that Agent has never been (i) an officer, director, or partner in a firm or entity involved in any bankruptcy or receivership proceedings; (ii) a party to any civil action filed within the three (3) years prior to the Effective Date (as later defined); (iii) arrested or convicted for any crime or misdemeanor other than a traffic misdemeanor; (iv) the subject of an order entered by any state or federal agency finding a violation of their laws, rules or regulations; or (v) involved in any other action or proceeding which could adversely affect the reputation of GA or GA's business, or performance by Agent under this Agreement. Agent agrees to abide by all policies, practices and procedures adopted by the Company that are mandated by law, regulation, administrative bulletin or FAQ, or binding industry requirement, specifically insurance and data protection requirements.

8. Payment of Commissions. The Agent expressly acknowledges and agrees that all commissions for insurance products sold under this Agreement will be paid directly by the insurance carriers to the Agent, in accordance with the commission levels established by GA. GA retains the sole and absolute discretion to determine, amend, or modify commission levels at any time without prior notice. The Agent is solely responsible for staying informed of the current commission schedules as published or made available by GA and/or the carriers. The Agent further acknowledges that any failure to confirm such commission levels shall not relieve the Agent of compliance with the terms set forth herein. GA shall bear no liability for any discrepancies, delays, or disputes concerning commission payments, which remain the sole responsibility of the carriers.

9. Chargebacks and Agent Liability. The Agent unequivocally assumes full and exclusive responsibility for all chargebacks arising from cancellations, lapses, rescissions, or any other events resulting in the reversal of previously paid commissions, whether such reversals occur during or after the term of this Agreement. The Agent agrees to indemnify and hold harmless GA against any and all liabilities, losses, damages, costs, or expenses—including, but not limited to, attorneys' fees and court costs—incurred as a direct or indirect result of the Agent's actions, inactions, omissions, or breach of this Agreement. In the event that any chargeback liability rolls up to GA due to the Agent's failure to satisfy their financial obligations, GA reserves the right to immediately deduct the full amount of such chargebacks from any future commissions payable to the Agent. Should such deductions be insufficient to cover the outstanding chargeback balance, the Agent agrees to remit payment to GA within three (3) business days of receiving written notice of the outstanding liability. GA further reserves the right to pursue all legal remedies available under applicable law to recover any remaining balances, including the filing of legal claims or liens, with all costs of enforcement borne solely by the Agent.

10. Personal Guarantee. As a material condition of this Agreement, the Agent shall execute and be bound by a Personal Guarantee, personally obligating the Agent to reimburse GA for any and all

chargeback amounts, costs, fees, or damages that roll up to GA as a result of the Agent's actions, inactions, omissions, or failure to perform under this Agreement. The Personal Guarantee is irrevocable and enforceable irrespective of the termination, expiration, or any modification of this Agreement. The Agent expressly agrees to waive all defenses, objections, or claims related to the enforcement of the Personal Guarantee, including but not limited to arguments regarding the fairness, scope, or reasonableness of this clause. The Agent further acknowledges that GA's remedies under this clause shall be cumulative and non-exclusive, and that GA may simultaneously pursue legal action, seek injunctive relief, and recover costs, including attorneys' fees, associated with enforcing this clause. This Personal Guarantee shall survive the termination or expiration of this Agreement and remain binding in perpetuity until all outstanding liabilities owed to GA are fully satisfied. Failure to comply with this clause or to remit payment as required may result in immediate legal action, including but not limited to garnishment, asset seizure, or any other remedy permitted by law. The Agent agrees that GA's right to enforce this Personal Guarantee shall not be limited by any statutory or equitable defenses and hereby consents to the jurisdiction of any court of competent authority for the resolution of such claims, specifically mentioned in Section 16.

11. Termination. This Agreement may be terminated by either party, with or without cause, upon providing thirty (30) days' prior written notice to the other party. Notwithstanding the foregoing, GA reserves the right to terminate this Agreement immediately and without prior notice in the event of the Agent's breach of any material provision, misconduct, failure to perform, or any act or omission that adversely affects GA's reputation, operations, or compliance with applicable laws and regulations. Upon termination of this Agreement, all rights, obligations, and liabilities accrued up to the effective date of termination shall remain in full force and effect. Termination of this Agreement shall not relieve the Agent of any obligations related to chargebacks, reimbursements, indemnities, or any other liabilities that arise directly or indirectly from activities conducted under this Agreement. GA retains the sole discretion to notify carriers and other parties of the termination and take any steps necessary to ensure the protection of its business interests, including but not limited to blocking access to GA's systems, tools, or proprietary materials immediately upon termination.

12. Events After Termination. Upon termination of this Agreement, the Agent shall:

- a. **Cease All Representations:** Immediately cease representing themselves as an agent of GA or as having any affiliation with GA. The Agent shall also discontinue the use of any trademarks, trade names, logos, or proprietary materials belonging to GA;
- b. **Return of Materials:** Return or destroy all confidential and proprietary information, marketing materials, client information, training guides, or any other resources provided by GA, within five (5) business days of termination. Written confirmation of the return or destruction of such materials shall be provided to GA upon request;
- c. **Settlement of Financial Obligations:** Remit payment in full for any outstanding chargebacks, fees, or other liabilities owed to GA. The Agent acknowledges that GA may deduct such amounts from any unpaid commissions or other sums owed to the Agent at the time of termination;
- d. **Restrictive Covenants:** Comply with any restrictive covenants, including but not limited to non-solicitation and confidentiality obligations, as specified in this Agreement. The Agent acknowledges that such covenants shall remain enforceable post-termination for the duration specified in this Agreement; and
- e. **Final Commission Payments:** Acknowledge that GA reserves the right to withhold final commission payments for a period of up to one (1) year following termination to account for any pending chargebacks, adjustments, or disputes. Any remaining balance due to the Agent, if any, will be paid after all liabilities have been resolved.

GA reserves the right to pursue legal or equitable remedies in the event the Agent fails to comply with any post-termination obligations. The Agent expressly acknowledges and agrees that the termination of this Agreement shall not release them from liabilities accrued prior to termination or any continuing obligations expressly stated to survive termination.

13. Indemnification. Agent agrees to indemnify, defend and hold GA, its subsidiaries, and their respective officers, directors, shareholders, and employees harmless from and against all claims, expenses

and liability (including reasonable attorney's fees) for injury to or death of any person or damage to any real, personal or intellectual property (including property of Agent) caused by, arising out of or in any way connected with (i) Agent's performance of its duties and obligations under this Agreement, or (ii) Agent's gross negligence, willful misconduct or breach of its obligations under this Agreement. Notwithstanding the foregoing, Agent's indemnity obligations does not extend to any claim, liability, or expense (including reasonable attorney's fees) arising from a grossly negligent or willful act or omission of GA.

14. Record Keeping. The Agent agrees to maintain accurate, complete, and up-to-date records of all transactions, communications, and activities related to their performance under this Agreement, including but not limited to: (1) detailed records of all client interactions, applications submitted, policies issued, and correspondence with carriers or clients, (2) documentation evidencing compliance with applicable laws, regulations, and carrier requirements, including but not limited to signed applications, disclosures, and consent forms, (2) records of commissions received, chargebacks incurred, and any other financial transactions related to the sale of insurance products under this Agreement, and (4) proof of completion of all required training programs, certifications, and continuing education necessary for compliance with industry and regulatory standards. The Agent agrees to retain all such records for a minimum period of six (6) months following the termination or expiration of this Agreement, or for a longer period if required by applicable law, regulation, or carrier policies. GA reserves the right to audit the Agent's records at any time, with reasonable notice, to ensure compliance with this Agreement, carrier requirements, and applicable laws and regulations. The Agent shall cooperate fully with any such audit and provide access to requested records within five (5) business days of GA's request. Failure to maintain adequate records as required by this clause or refusal to comply with an audit request may result in immediate termination of this Agreement and may expose the Agent to legal liability, including but not limited to recovery of damages, legal fees, and costs incurred by GA as a result of the Agent's non-compliance.

15. Notices. All notices, requests, consents, and other communication required or permitted by any provision of the Agreement shall be in writing, shall be addresses to the receiving Party's address set forth below or to such other address as a Party may designate by notice hereunder, and shall be either (a) delivered by hand, (b) sent by reputable overnight courier, (c) sent by certified mail, return receipt requested, postage prepaid, or (d) sent by electronic mail.

If to GA: Agency Truecare LLC
 Attn: Agency Owner Josue Nord
 Email: Info@truecarehealths.co

If to Agent: _____

All notices, request, consents, and other communication required hereunder shall be deemed to have given (i) if by hand, at the time of the delivery thereof to the receiving Party at the address of such Party set forth above; (ii) if sent by overnight courier, on the next business day following the day such notice is delivered to the courier service, (iii) if made by telecopy or facsimile transmission, at the time that receipt thereof has been acknowledged by electronic conformation or otherwise, or (iv) if sent by registered or certified mail, on the fifth business day following the day such mailing is sent. The address of any Party may be changed at any time by written notice to the other Party.

16. Governing Law; Venue. All issues and questions concerning the construction, validity, interpretation, and enforceability of this Agreement and the exhibits and schedules hereto, and their negotiation, execution, performance or nonperformance, interpretation, termination, construction, and all

matters based upon, arising out of, or related to any of the foregoing, whether arising in law or equity, shall be governed by, and construed in accordance with, the laws of the State of Florida, without giving effect to any choice of law or conflict of law rules or provisions (whether of the State of Florida or any other jurisdiction) that would cause the application of the laws of any jurisdiction other than the State of Florida. Agent hereby irrevocably waives any objection which it may have to the laying of venue of the aforesaid actions or proceedings arising out of or in connection with this Agreement in the courts located in Broward County, Florida, and further irrevocably waives and agrees not to plead or claim in any such court that any such action or proceeding brought in any such court has been brought in an inconvenient forum. Agent agrees that service of process upon the Agent in any action shall be effective if notice is delivered to the physical address of Agent set forth in Section 15 of this Agreement.

17. Confidentiality. Agent agrees that during the term of this Agreement and for a period of two (2) years after its termination or expiration, Agent shall not disclose, divulge, or make accessible to any third party any confidential information, trade secrets, or proprietary information of GA, including but not limited to client lists, commission schedules, marketing strategies, or other proprietary data or information obtained during the course of the Engagement, without the express prior written consent of GA. This provision shall survive the termination or expiration of this Agreement.

18. Non-Solicitation. For a period of two (2) years following the termination or expiration of this Agreement, Agent agrees not to directly or indirectly solicit, contact, or attempt to solicit or contact, for the purpose of selling insurance products, any client, prospect, or business partner of GA that Agent became aware of or had contact with during the course of their engagement with GA.

19. Non-Competition. Agent agrees that for a period of one (1) year following the termination of this Agreement, Agent shall not directly or indirectly engage in the sale of insurance products or services in competition with GA within a fifty (50) mile radius of any location where GA conducts substantial business. This restriction shall not apply if the termination of this Agreement was initiated by GA without cause.

20. Record-Keeping and Audit Rights. Agent shall maintain accurate records of all transactions and communications related to the performance of its obligations under this Agreement for a period of three (3) years following the termination or expiration of this Agreement. GA shall have the right, upon reasonable notice and during regular business hours, to audit and inspect such records to ensure compliance with the terms of this Agreement.

21. Waiver of Jury Trial. EACH PARTY HERETO IRREVOCABLY WAIVES ALL RIGHT TO TRIAL BY JURY IN ANY LEGAL ACTION OR PROCEEDING (INCLUDING COUNTERCLAIMS) RELATING TO OR ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT OR ANY OF THE TRANSACTIONS OR RELATIONSHIPS HEREBY CONTEMPLATED OR OTHERWISE IN CONNECTION WITH THE ENFORCEMENT OF ANY RIGHTS OR OBLIGATIONS HEREUNDER.

22. Legal Fees and Costs. If a legal action is initiated by GA against Agent arising out of or relating to the alleged performance or non-performance of any right or obligation established hereunder, any and all fees, costs and expenses reasonably incurred by GA or its legal counsel in investigating, preparing for, prosecuting, defending against, or providing evidence, producing documents or taking any other action in respect of, such action shall be the obligation of and shall be paid or reimbursed by Agent..

23. Counterparts; Delivery. This Agreement may be executed in any number of separate counterparts by the parties hereto, each of which, when so executed and delivered, shall be deemed to be an original, and all of which counterparts, taken together, shall constitute one and the same instrument. Any signature page from any such counterpart may be attached to any other counterpart to complete a fully executed counterpart of this Agreement. Signatures to this Agreement (or to any amendment to this Agreement) transmitted in a commonly accepted electronic format that reproduces an image of the actual executed signature page shall be deemed a binding original and shall have the same legal effect, validity, and enforceability as a manually executed counterpart of the document to the extent and as provided for in the Federal Electronic Signatures in Global and National Commerce Act and the applicable state law based

on the Uniform Electronic Transactions Act. In no event shall any party be obligated hereunder unless and until this Agreement has been fully executed and delivered by all parties hereto.

24. Headings and Captions. The headings and captions of the various subdivisions of this Agreement are for convenience of reference only and shall in no way modify, affect or be considered in construing or interpreting the meaning or construction of any of the terms or provisions hereof.

25. Severability. In the event that any court of competent jurisdiction shall finally determine that any provision, or other portion thereof, contained in this Agreement shall be void or unenforceable in any respect, then such provision shall be deemed limited to the extent that such court determines it unenforceable, and the remainder of the Agreement shall remain in full force and effect.

26. Agent's Opportunity to Review. Agent hereby acknowledges that prior to its execution of this Agreement, Agent has been given the opportunity to review this Agreement and seek the advice of independent legal counsel with respond to the terms hereof. By execution of this Agreement, Agent acknowledges and agrees that it has read and understands the terms hereof.

27. Automatic Rescission. This Agreement shall be automatically rescinded and shall be null and void in the event this Agreement has not been fully-executed and delivered by all parties hereto within five (5) days after the date this Agreement is executed by the first of the parties to execute on the signature page hereof, TIME BEING OF THE ESSENCE.

[Remainder of Page Intentionally Blank]

IN WITNESS WHEREOF, the parties have executed or caused this Agreement to be executed on their behalf by their duly authorized representatives as of the Effective Date.

**Company Name,
a Florida limited liability company**

By: _____
Print Name: Andrew Cabrera
Title: Managing Partner
Date: 06/25/2026

Agent:

By: _____
Print Name: _____
Title: _____
Date: _____

ACH/DIRECT DEPOSIT AUTHORIZATION FORM

By signing this Agreement, I hereby authorize **Company Name**, a Florida limited liability company, to send credit entries, as well as appropriate debit and adjustment entries, to my account indicated below. These deposits or credits may be made electronically or by any other commercially accepted method. In the occurrence of a chargeback concerning any commissions disbursed to Agent pursuant to this Agreement, GA retains the authority to offset the equivalent amount from subsequent commissions payable to Agent. Alternatively, GA may elect to effectuate such deductions directly from Agent's bank account through the Automated Clearing House (ACH). A chargeback may occur if, for any reason, a policy for which Agent received commissions is canceled, refunded, or otherwise results in a reduction of the premiums on which commissions were initially paid. The chargeback amount shall be calculated based on the total premiums associated with the policy subject to chargeback. Agent agrees to promptly reimburse GA for any deducted commissions due to chargebacks. GA will provide written or verbal notice to Agent detailing the chargeback, including the reason for the chargeback and the corresponding amount. The written notice will be sent to Agent's last known physical address or email address, and will specify the effective date of the chargeback. In the event that the chargeback exceeds the commissions payable to Agent in the current commission period, Agent agrees to repay the excess chargeback amount to GA within three (3) days of receiving the notice. Chargebacks may impact Agent's eligibility for enhanced commission rates or achievement thresholds outlined in the Commission Schedule. In such cases, GA may adjust Agent's commission rate based on the revised premiums after chargebacks. The provisions of this Chargebacks section shall survive the termination or expiration of this Agreement, and Agent's obligation to repay chargebacks shall continue until all outstanding amounts are fully settled.

Name: _____

By: _____

Social Security #: _____

Driver's License #: _____

Bank Name: _____

Account #: _____

Routing Transit #: _____

Type of Account: ☐ Checking account ☐ Savings account



TrueCare

TRUECARE EMPLOYEE CONFIDENTIALITY, IP, AND RESTRICTIVE COVENANTS AGREEMENT

(Non-Disclosure + Work Product/IP Assignment + Non-Compete + Non-Solicit)

This TrueCare Employee Confidentiality, Intellectual Property, and Restrictive Covenants Agreement (“Agreement”) is entered into as of [Effective Date] (“Effective Date”) by and between:

TrueCare and Assurance LLC, a Florida limited liability company, with its principal place of business at 2125 Biscayne Blvd, Miami, FL 33137, Suite 400E (“TrueCare” or “Company”), and
[EMPLOYEE FULL LEGAL NAME], residing at [Address] (“Employee”).

TrueCare and Employee are collectively the “Parties.”

1) Purpose and Consideration

Employee will be employed by TrueCare in the role of [Title/Role] and will receive access to TrueCare’s confidential information, systems, clients, processes, training, and business opportunities.

Consideration. Employee acknowledges that the promises in this Agreement are supported by good and sufficient consideration, including (a) Employee’s employment or continued

employment with TrueCare, (b) compensation and benefits, and (c) TrueCare providing access to Confidential Information, clients, systems, and specialized training.

2) Definition of Confidential Information

“Confidential Information” means any non-public information that TrueCare discloses to Employee or that Employee learns, observes, or accesses in the course of employment, whether oral, visual, electronic, or written, that a reasonable person would understand to be confidential, including without limitation:

- trade secrets and proprietary know-how;
- customer/client/prospect/lead lists and data; call scripts, rebuttals, training materials, SOPs, QA/scorecards;
- pricing, compensation structures, commissions, margins, costs, revenues, forecasts;
- marketing strategies, creatives, funnels, targeting, analytics, conversion data, KPIs;
- vendor lists, lead sources, vendor terms, costs, performance, and contacts;
- internal workflows, automations, CRM/dialer configurations, reporting, integrations;
- system architecture and access details, permissions, and non-public operational methods;
- any notes, summaries, compilations, recordings, or derivative materials that contain or reflect any of the above.

Confidential Information includes data belonging to TrueCare’s customers, carriers, vendors, and partners that TrueCare is obligated to protect.

3) Exclusions

Confidential Information does not include information that Employee can prove with competent written evidence:

- a) becomes public through no breach by Employee;
 - b) was lawfully known to Employee without restriction before TrueCare disclosed it;
 - c) was lawfully received from a third party without breach of duty; or
 - d) was independently developed without use of Confidential Information.
-

4) Confidentiality and Restricted Use

Employee shall:

- a) use Confidential Information only for TrueCare business and within the scope of employment;
 - b) not disclose Confidential Information to any third party except as expressly authorized by TrueCare in writing;
 - c) protect Confidential Information using at least reasonable care;
 - d) not copy, screenshot, photograph, record, download, export, transmit, or remove Confidential Information except as strictly necessary for authorized job duties and consistent with TrueCare policies; and
 - e) not reverse engineer, decompile, disassemble, or attempt to derive underlying methods, source code, or structure from any Confidential Information to the extent permitted by law.
-

5) Permitted Disclosures (Need-to-Know)

Employee may disclose Confidential Information only to TrueCare personnel or TrueCare-authorized providers who have a legitimate need-to-know for TrueCare business and who are subject to confidentiality obligations.

6) Security; Devices; No Personal Accounts

- a) **Access Controls.** Employee will follow TrueCare security requirements, including MFA where available, least-privilege access, and no sharing credentials.
 - b) **No Personal Storage.** Employee shall not store Confidential Information in personal email, personal cloud storage (e.g., iCloud/Google Drive/Dropbox), personal messaging apps, or personal devices except as expressly authorized by TrueCare in writing.
 - c) **Incident Reporting.** Employee must report any suspected unauthorized access, disclosure, loss, or compromise of Confidential Information immediately upon discovery.
-

7) Compelled Disclosure

If Employee is legally compelled to disclose Confidential Information, Employee will (to the extent permitted by law):

- a) promptly notify TrueCare;
 - b) cooperate with TrueCare in seeking protective treatment; and
 - c) disclose only what is legally required.
-

8) Work Product; Inventions; Intellectual Property Assignment

Work Product. All inventions, discoveries, ideas, improvements, processes, works of authorship, scripts, recordings, training materials, designs, software, automations, templates, documents, and other materials created, authored, conceived, reduced to practice, or developed by Employee (alone or with others) that are (i) within the scope of employment, (ii) created using TrueCare time/resources/systems, or (iii) created using or derived from Confidential Information (collectively, “**Work Product**”) are the exclusive property of TrueCare.

Assignment. To the extent any Work Product is not deemed a “work made for hire,” Employee hereby irrevocably assigns to TrueCare all right, title, and interest in and to such Work Product, including all intellectual property rights.

Further Assurances. Employee will execute reasonable documents and assist TrueCare to confirm, enforce, or perfect TrueCare’s rights in Work Product.

9) Ownership; No License

All Confidential Information and Work Product remain TrueCare’s exclusive property. No rights are granted to Employee except the limited right to use Confidential Information for TrueCare business during employment.

10) Return of Property; Destruction; Certification

Upon TrueCare’s request or upon termination of employment for any reason, Employee shall immediately:

- a) return all TrueCare property (devices, documents, notes, records, keys, badges);
 - b) return and permanently delete all Confidential Information in any form, including from personal email, cloud storage, messaging apps, external drives, and backups; and
 - c) upon request, certify in writing compliance with this section.
-

11) Protected Rights / Legal Carve-Out

Nothing in this Agreement prohibits Employee from engaging in activity protected by law (including lawful discussions of wages/terms and conditions of employment), or from

communicating with a government agency, filing a charge or complaint, or participating in an investigation or proceeding. However, Employee remains obligated not to unlawfully disclose TrueCare trade secrets except as permitted by applicable law.

12) DTSA Whistleblower Immunity Notice

Pursuant to 18 U.S.C. § 1833(b), Employee is notified that an individual shall not be held criminally or civilly liable under any federal or state trade secret law for the disclosure of a trade secret that is made (i) in confidence to a federal, state, or local government official, or to an attorney, solely for the purpose of reporting or investigating a suspected violation of law; or (ii) in a complaint or other document filed in a lawsuit or other proceeding, if such filing is made under seal.

13) Term of Confidentiality

Employee's confidentiality obligations begin on the Effective Date and continue:

- for **trade secrets**: as long as the information remains a trade secret; and
 - for all other Confidential Information: for **five (5) years** after employment ends (or the last date of access/disclosure, whichever is later).
-

14) Restrictive Covenants

Restrictive Covenants. Employee agrees to **Exhibit A (Restrictive Covenants)**, which is incorporated into and made part of this Agreement.

15) Remedies; Injunctive Relief

Employee acknowledges that any breach may cause irreparable harm. TrueCare is entitled to temporary, preliminary, and permanent injunctive relief, specific performance, and all other remedies available at law or equity, in addition to damages.

16) Attorneys' Fees and Costs

In any action arising out of or relating to this Agreement, the **prevailing party** is entitled to recover reasonable attorneys' fees and costs, including on appeal.

17) Governing Law; Exclusive Venue; Jurisdiction

This Agreement is governed by the laws of the State of Florida. Any dispute arising out of or relating to this Agreement shall be brought **exclusively** in the state courts located in **Miami-Dade County, Florida**, or the applicable federal court serving Miami-Dade County, and the Parties consent to personal jurisdiction and venue there.

18) Severability; Reformation (Blue-Pencil)

If any provision is invalid or unenforceable, it shall be enforced to the maximum extent permitted by law and the remainder remains effective. A court may modify any overbroad provision to render it enforceable to the fullest extent permitted.

19) Entire Agreement; Amendment; No Waiver

This Agreement is the entire agreement between the Parties regarding confidentiality, Work Product/IP, and restrictive covenants. Any amendment must be in writing signed by both Parties. No waiver is effective unless in writing.

20) Counterparts; Electronic Signatures

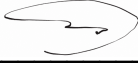
This Agreement may be executed in counterparts and via electronic signatures, each deemed an original.

SIGNATURES

TRUECARE (Company):

TrueCare and Assurance LLC

2125 Biscayne Blvd, Miami, FL 33137, Suite 400E

By:  _____

Name: Andrew Cabrera

Title: Managing Partner

Date: 06/24/2026

EMPLOYEE:

Signature: _____

Name: _____

Date: _____

Employee Initials (Sections 2–13): _____

EXHIBIT A — RESTRICTIVE COVENANTS (NON-COMPETE + NON-SOLICIT)

(TrueCare | ACA + Medicare | Palm Beach/Broward/Miami-Dade | 24 Months)

A1) Legitimate Business Interests

Employee acknowledges TrueCare has legitimate business interests, including trade secrets, valuable confidential business information, substantial relationships with specific prospective or existing customers, customer goodwill, and specialized training provided to Employee.

A2) Definitions

“Competitive Business” means any person or entity that, within the Territory, markets, sells, solicits, enrolls, services, brokers, or provides Health Insurance products that are the same as or substantially similar to those offered by TrueCare.

“Health Insurance” means **ACA/Marketplace (FFM) plans, Medicare Advantage (MA/MAPD), Medicare Supplement (Medigap), and Medicare Part D** plans, plus any substantially similar health coverage products offered by TrueCare during Employee’s employment.

“Competitive Services” means the same or substantially similar services Employee performed for TrueCare or had material responsibility for during the last twelve (12) months of employment, including (as applicable): lead handling, calling/closing, enrollment assistance, quoting, plan comparison/recommendation, retention, customer servicing, agent support, QA/coaching, training, vendor management, marketing operations tied to ACA/Medicare acquisition, or CRM/dialer administration tied to those functions.

“Restricted Customer/Prospect” means any person/entity that, during the last twelve (12) months of employment:

- (a) was a TrueCare customer, client, lead, prospect, applicant, enrollee, or referral source; or
- (b) TrueCare actively marketed to;

and with whom Employee had contact, responsibility, or about whom Employee received Confidential Information.

“Territory” means **Palm Beach County, Broward County, and Miami-Dade County, Florida.**

A3) Restricted Period

The “Restricted Period” is **twenty-four (24) months** following termination of employment for any reason.

A4) Non-Compete (Limited to Competitive Services)

During employment and during the Restricted Period, Employee shall not, within the Territory, directly or indirectly (as employee, contractor, consultant, owner, partner, member, officer, agent, or otherwise) perform **Competitive Services** for a **Competitive Business**.

Passive Ownership Exception. Employee may own up to two percent (2%) of a publicly traded company that is a Competitive Business, provided Employee does not perform Competitive Services.

A5) Non-Solicitation of Customers/Prospects (and Non-Acceptance)

During the Restricted Period, Employee shall not, directly or indirectly:

- (a) solicit, induce, divert, or attempt to solicit any Restricted Customer/Prospect for the purpose of providing Health Insurance or Competitive Services; or
- (b) accept Health Insurance business from any Restricted Customer/Prospect if such business results from Employee’s solicitation, use of Confidential Information, or relationships developed through TrueCare.

A6) Non-Solicitation of Employees/Contractors

During the Restricted Period, Employee shall not solicit, recruit, induce, or encourage any TrueCare employee or contractor to terminate or reduce their relationship with TrueCare.

A7) “Not Able to Discuss Business” — Properly Narrowed to Confidential Information

During the Restricted Period, Employee shall not use or disclose Confidential Information to assist any Competitive Business, including by sharing scripts, training, processes, vendor/lead source intelligence, targeting, conversion data, pricing/comp structures, QA standards, CRM/dialer configurations, or any other non-public operational know-how learned through employment.

A8) Tolling

If Employee breaches Exhibit A, the Restricted Period is tolled during the breach and extended so TrueCare receives the full intended benefit of the Restricted Period.

A9) Injunction; Reformation; Fees

Employee agrees breach will cause irreparable harm and TrueCare is entitled to injunctive relief. If any restriction is found overbroad, a court may modify and enforce it to the maximum extent permitted by law. Attorneys' fees and costs are governed by the Agreement.

Employee Initials (Exhibit A): _____ Date: _____



TrueCare Sales Agent Handbook

Independent Contractor (1099) Handbook — Sales Agents Only

Effective Date: _____

Version: 1.0

Handbook Purpose

This handbook outlines the standards, expectations, and policies that apply to all **1099 Sales Agents** working with TrueCare (“the Company”). It exists to protect clients, protect the Company, and ensure a consistent, compliant, high-performing sales operation.

This handbook may be updated at any time. Agents will be notified of material updates and may be required to re-acknowledge the most current version.

Independent Contractor Relationship

All Sales Agents covered by this handbook are **independent contractors (1099)**. Nothing in this handbook creates an employment relationship, guarantees ongoing work, or creates any right to continued engagement. TrueCare may restrict system access, reassign leads, or end the independent contractor relationship at any time as permitted by applicable agreements and law.

Agents are responsible for their own taxes, insurance, and professional expenses unless expressly stated otherwise in writing.

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-

1) Equal Opportunity / Anti-Discrimination / Anti-Harassment

TrueCare is committed to a professional environment that is free from discrimination, harassment, retaliation, and inappropriate conduct.

Prohibited behavior includes (not exhaustive)

- Discrimination based on protected characteristics (race, color, religion, sex, national origin, age, disability, etc.)
- Sexual harassment (unwanted advances, sexual comments, inappropriate jokes, coercion)
- Bullying, threats, intimidation, stalking, or hostile conduct
- Retaliation against anyone who raises a concern in good faith or participates in an investigation

Reporting

- **Report concerns to your manager first: Sales Director or HR**
- Retaliation is strictly prohibited.

Mandatory reporting (Leadership)

Any person in a leadership position who witnesses or becomes aware of harassment, discrimination, or retaliation **must report it to Sales Director or HR**.

Investigations and consequences

TrueCare will review reported concerns and may conduct an investigation. Violations may result in coaching, restricted access, or immediate termination of the independent contractor relationship.

Workplace relationships

If a relationship exists or develops that creates a conflict of interest or a power imbalance, it **must be disclosed to Ownership and HR (Kash)**.

2) Accommodations (Disability / Religious)

TrueCare will consider reasonable accommodation requests related to disability or religious practice.

- Requests must be submitted to **Admin or HR**.
 - TrueCare may request reasonable documentation when appropriate.
 - **Camera must be on for meetings** (no exception unless approved by management/ownership in writing).
-

3) Work Structure, Scheduling, Attendance, and Reliability

Scheduling

TrueCare provides company scheduling. Agents do not self-schedule. Agents are expected to be available and active during assigned shifts unless **Sales Director or Ownership** approves an exception in advance.

Office Hours (Operational Seasons)

OEP (January 1 – March 31)

- Mon–Fri: **9:30 AM – 7:00 PM** (volume-dependent)
- Lunch: **3:00 PM (1 hour)**
- Sat: **10:30 AM – 5:30 PM**
- Saturdays are **optional only** if agent meets **25 applications minimum** requirements.

SEP / Rest of Year (April 1 – September 30)

- Mon–Fri: **9:30 AM – 5:00 PM**
- Lunch: **2:00 PM (1 hour)**

AEP (October 15 – December 7)

- Mon–Fri: **9:00 AM – 7:00 PM**
- Sat: **10:00 AM – 5:30 PM**
- Lunch: **3:00 PM (1 hour)**

Minimum availability requirements

- **OEP:** 6 days/week minimum availability
- **SEP:** 5 days/week minimum availability
- **AEP:** 6 days/week minimum availability

Active during shift

Agents must remain active during assigned shifts (taking calls, working leads, completing dispositions/notes). If an agent is inactive without approval, lead access may be restricted.

Tardiness / No-Call No-Show

- **30 minutes late** for a scheduled shift = treated as a **No-Call/No-Show** unless pre-approved.
- **Two (2) No-Call/No-Shows** may result in **lead access restriction**.
- **Tardy policy: 3 tardies within 30 days** may result in **lead access restriction**.

Remote work standards

- Camera must be on for meetings.
 - **No calls from public places** (coffee shops, lobbies, shared spaces, etc.) unless approved by **Sales Director** due to client information sensitivity.
 - Agents must maintain a quiet, private environment suitable for recorded calls.
-

4) Compensation, Performance Standards, and Coaching

Commission payments (High-Level Policy)

- Commissions are **paid weekly or bi-weekly**, generally **within the same week that carrier commissions are received/posted**, depending on carrier processing timelines and the agent's contracting status.
- Commissions are considered earned and payable **based on carrier paid status** and **only to the extent the carrier has paid**.

Carrier reversals / adjustments

Carrier reversals, policy cancellations, or other carrier commission adjustments may affect future payouts. TrueCare may reconcile payments based on carrier reports and paid status.

Payout disputes

All commission disputes must be submitted **within 24 hours** of payout notification. Disputes submitted after the deadline may be denied.

Performance standards (General)

Agents are expected to meet performance standards across:

- Consistent activity and responsiveness during shift
- Professional call conduct and script adherence
- Accurate documentation and dispositions
- Compliance standards (SOA, recording disclosures, approved processes)
- Retention-minded selling behavior and proper plan fit

Coaching and corrective action

TrueCare uses QA scoring and performance monitoring to coach and correct issues.

- **QA trigger:** Scores **below 70%** trigger coaching and remediation.
- Escalation ladder (general framework; final decisions made jointly by Sales Director and Ownership):
 1. Coaching + corrective guidance
 2. Remedial training + lead restriction as needed
 3. Final warning / probationary access
 4. Termination of independent contractor relationship

Incomplete documentation

Agents are responsible for accurate dispositions and notes. Failure to properly log required dispositions/notes may result in:

- loss of commission credit (sale omission), and/or
- restricted lead access, and/or
- corrective action.

5) Client Data, Confidentiality, Security, and Device Policy

Confidentiality and sensitive information

Agents must protect all client information, including any personally identifiable information and health-related information. Treat all client data as sensitive.

Data ownership

Unless otherwise defined in writing, **TrueCare owns** all:

- leads and lead sources
- client data
- call recordings
- notes and CRM records
- pipeline history and outcomes
- book of business and related servicing records

No storing client data outside approved systems

Agents may not store client data outside TrueCare-approved systems.

Hard rule: No client data is to be stored on personal devices, personal notes apps, personal Google Drive, spreadsheets, or any external CRM.

Approved systems for client contact and documentation are:

- **GoHighLevel (GHL)/ Agent CRM**
- **JustCall** (approved dialer) or TLD Dialer

Devices (1099)

Agents may use a personal computer **if compliant** with TrueCare security requirements.

Minimum security requirements (mandatory)

- **MFA** enabled wherever available
- Screen lock enabled
- No shared devices
- No public Wi-Fi for handling client data or calls
- Credentials may never be shared

Breach reporting

Any suspected security incident (lost device, suspicious login, possible data exposure) must be reported **immediately** to **Sales Director** and Company Admin.

Personal phone policy (strict)

- **Agents may not text leads or clients from personal phone numbers.**
 - Doing so may result in **immediate termination**.
 - Messaging clients is permitted **only through the approved dialer (JustCall/TLD)** and approved workflows.
-

6) Communication Standards and Escalations

Internal responsiveness

During coverage blocks, agents must respond to internal messages (Slack or designated channels) within **30 minutes**, unless on break or engaged on a live call.

Escalations

- **Compliance issues:** Sales Director
- **Client complaints:** Sales Director
- **Tech issues:** Admin

Agents must promptly escalate issues that may create compliance exposure or client harm.

7) Tools, Systems, Call Recording, and QA

Required systems

Agents are required to use:

- **Slack** (internal communication, scripts, announcements)
- **GoHighLevel (GHL)** (CRM, dispositions, notes, tracking)
- **JustCall** (calls + messaging)/ TLD Dialer
- **Google Workspace** (as assigned)

Access control

- No credential sharing.
- Access is role-based and may be modified at any time.
- Access may be restricted for performance, compliance, or reliability issues.

Calls and recording (mandatory)

- **All calls must be placed through JustCall/ TLD (100%).**
- Call recording disclosure is required **at the start of every call.**
- If a prospect refuses recording, the agent must **end the call.**
- The approved disclosure language/script is maintained in **Slack** and will be provided during training. Agents are required to follow the most current approved script.

Quality Assurance (QA)

- Minimum QA: **5 calls reviewed per agent per week**
- QA reviewers may vary depending on whether a complaint is involved (combined group as needed).

- Coaching is required for scores below 70% and may result in restrictions if not corrected.
-

8) Conflicts of Interest, Ethics, and Conduct Standards

Exclusive selling

Agents may only sell within **TrueCare**. Selling insurance products outside TrueCare is prohibited.

Conflicts of interest prohibited

- Lead brokering or selling leads
- Side deals with vendors
- Moving leads or clients to another agency
- Using TrueCare data for any non-TrueCare activity

Professional conduct

The following are prohibited and may result in immediate removal:

- Workplace altercations, threats, intimidation, violence
 - Harassment or discriminatory behavior
 - Fraud or misrepresentation
 - Compliance breaches
 - Data export or attempts to export client lists
 - Public calling without approval
 - Any unethical behavior that creates legal/compliance exposure
-

9) Time Off and Blackout Periods

Time off notice requirement

Agents must request time off with at least **two (2) week notice**.

Blackout periods

AEP and OEP are blackout periods for time off unless explicitly approved by management/ownership in advance.

10) Separation / Offboarding

Access removal

Upon offboarding, access removal is **immediate**.

Return of property

Any Company-issued property must be returned promptly upon request.

Continuing obligations

Confidentiality and protection of client data continue after separation.

Final commissions

Final commissions may be held until **carrier paid status is confirmed**, provided no debt is held with the Company.

11) Acknowledgment and E-Signature

By signing below, I acknowledge that I have read and understand the TrueCare Sales Agent Handbook and agree to follow all policies and standards contained within it, including confidentiality, security requirements, call recording disclosure requirements, and required system usage.

Agent Full Name: _____

Date: _____

E-Signature: _____
